

22STCV06081 22STCV06081

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-09-18

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Case Number: 22STCV06081 Hearing Date: September 18, 2026 Dept: 224

Pitt v. Jolie

TENTATIVE RULING

Plaintiffs William B. Pitt and Mondo Bongo, LLC's Motion to Compel Defendant Tenute del Mondo B.V.'s Further Response to Request for Production No. 11 and Production of Responsive Documents is GRANTED in part and DENIED in part as described below.

A further verified response, production, and amended privilege log are due within 20 days of this order.

Defendant Tenute del Mondo B.V.'s request for monetary sanctions is denied.

ANALYSIS

Introduction

On February 17, 2022, Plaintiffs William B. Pitt and Mondo Bongo, LLC ("Plaintiffs") filed the Complaint in this action against Defendants Angelina Jolie, Nouvel, LLC, Yuri Shefler, Alexey Oliynik, and Tenute del Mondo B.V. ("Tenute"). Related cross-actions are pending.

Plaintiffs served their Requests for Production of Documents, Set Two, on Tenute, including Request for Production No. 11, which seeks all documents and communications concerning the diligence performed or contemplated to be performed by any of the Stoli Parties in connection with the Transaction. Tenute responded with general and specific objections and a qualified statement that it would produce non-privileged documents located after a reasonable search.

In January 2024, Tenute produced a May 27, 2021 email chain bearing Bates number Oliynik_00002643, in which Tenute CEO Jon Pepper circulated a document titled "Provence - DD risks.docx" to Christopher Caldwell, Alexey Oliynik, Damian McKinney, and Todd Culyba, Stoli Group's General Counsel. Tenute produced the cover email and the executives' responsive comments without redaction but withheld the attachment in its entirety.

On August 3, 2026, Plaintiffs filed an Informal Discovery Conference ("IDC") statement raising Tenute's withholding of the attachment. Tenute filed a response on August 12, 2026. On August 19, 2026, the Court held the IDC and directed Tenute to

serve a privilege log identifying the dates, authors, versions, and page counts of the withheld material.

The parties continued to meet and confer on August 20, 2026. On August 22, 2026, Tenute served a supplemental log titled "Provence - DD Risks Privilege Log," which identifies three versions of the document: an original dated May 27, 2021; a May 27, 2021 revision incorporating Mr. Caldwell's comments; and a June 16, 2021 version forwarded by Mr. Culyba to Mr. Oliynik. Tenute asserts attorney-client privilege and work product protection over each version. Mr. Culyba's continued deposition was taken on August 25, 2026, and the parties met and conferred again by videoconference that day.

On August 26, 2026, Plaintiffs filed this Motion.

On September 4, 2026, Tenute filed its Opposition.

Meet and Confer

The Declaration of Adebola Olofin executed on August 26, 2026, sets forth the meet and confer efforts of counsel for the Plaintiffs, and counsel's attempts to resolve the discovery dispute informally through IDC and videoconference. The declaration satisfies the requirement of Code of Civil Procedure section 2016.040.

Legal Standard

"A party may demand that any other party produce . . . a document that is in the possession, custody, or control of the party on whom the demand is made." (Code Civ. Proc., § 2031.010(b).) The demanding party may move for an order compelling further response to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).) "The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand," and "[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310(b).)

Unlike with requests to compel further interrogatories, a moving party seeking to compel further responses for requests for production must show good cause along with satisfaction of the meet and confer requirement. (CCP§ 2031.310(b).)

To prevail, a party moving for an order compelling further responses to a document production demand must first offer specific facts demonstrating "good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden "is met simply by a fact-specific showing of relevance." (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.) If "good cause" is shown by the moving party, the burden shifts to the responding party to justify any objections made to document disclosure. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

"The party to whom a demand for inspection, copying, or testing, or sampling has been directed shall respond separately to each item or category of item by any of the following: (1) A statement that the party will comply with the particular demand... A statement that the party ... will comply with the particular demand shall state that the production will be allowed either in whole or in part, and that all documents or things in the demanded category that are in possession, custody, or control of that party and to which no objection is being made will be included in the production. (2) A representation that the party lacks the ability to comply with the demand... A representation of inability to comply with the particular demand ... shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of items. (3) An objection to the particular demand... If only part of an item or category of item in a demand... is objectionable, the response shall contain a statement of compliance or a representation of inability to comply with respect to the remainder of that item or category. If the responding party objects to

the demand... the response shall do both of the following: [a] Identify with particularity any document or tangible thing... falling within any category of item in the demand to which an objection is being made, [b] Set forth clearly the extent of, and the specific ground for the objection.... If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (California Code of Civil Procedure §§ 2031.210, 2031.220, 2031.230, and 2031.240)

Good Cause

Plaintiffs contend that the withheld assessment bears directly on the Stoli Parties' knowledge of Mr. Pitt's then-ongoing negotiations with Ms. Jolie and their evaluation of the risks of proceeding with the Transaction notwithstanding those negotiations, which are subjects material to Plaintiffs' breach and tortious interference claims and to Defendants' cross-claims.

Plaintiffs have established good cause for the requests.

The May 27, 2021 Original Assessment and the May 27, 2021 Revision

Tenute has not carried its burden of establishing the preliminary facts supporting an attorney-client privilege claim as to these two versions.

The contemporaneous record, which consists of Tenute's own unredacted production, reflects that the assessment was prepared by Mr. Pepper, a non-attorney, at the request of Mr. McKinney, a non-attorney, and was described by its author as a draft of his own notes for discussion. It was transmitted simultaneously to four recipients, three of whom are business executives. One of those executives, Mr. Caldwell, responded with substantive comments that Tenute produced without redaction, and a revised version incorporating those business comments was circulated the same day. The produced chain reflects no response, direction, or input from Mr. Culyba.

Tenute's showing rests principally on two facts: that Mr. Pepper's cover email invited Mr. Culyba's "builds / questions," and that Mr. Culyba testified in August 2026 that the document "was sent to [him] looking for advice."

Neither carries Tenute's burden.

As to the first, an invitation for comment directed to one of four recipients does not establish that the dominant purpose of the document's preparation and transmittal was to obtain legal advice, particularly where the same transmittal solicited and received commercial input from the other recipients. Tenute is correct that a client need not incant the words "legal advice" for the privilege to attach, and that the presence of commercial subject matter does not defeat a privilege claim. But the question is not whether Mr. Culyba was asked for input but rather whether the record establishes that obtaining his legal assessment was the dominant purpose of the communication. On this record it does not. The employee-to-counsel privilege Chadbourne recognizes turns on the corporation's dominant purpose in directing the transmission, and here the assessment was compiled at a non-attorney's direction to evaluate transaction risks and was circulated for business comment. (Chadbourne, *supra*, 60 Cal.2d at pp. 734, 737-738.)

As to the second, Mr. Culyba's testimony is materially qualified. He testified that he lacks a specific recollection of reviewing the document and framed his answer in terms of likelihood given that a question had been directed to him. His broader testimony that he "didn't wear more than one hat" during the Transaction speaks to his general role and not to the dominant purpose of this communication. Testimony that an in-house lawyer acted only as a lawyer does not, without more, render privileged every document sent to him.

Tenute's reliance on Costco is misplaced at this stage. Costco holds that where the dominant purpose is established, the privilege protects the communication in its entirety, including its factual content. (Costco, supra, 47 Cal.4th at pp. 739-740.) It does not relieve the proponent of establishing the dominant purpose in the first instance.

Johnson v. Department of Transportation (2025) 109 Cal.App.5th 917 is likewise distinguishable. There the record independently established that the communication was made for the purpose of investigating and defending pending litigation. Here, the record supports the opposite inference and Tenute has offered no declaration from Mr. Pepper, Mr. McKinney, or any other participant to supply the missing foundation.

The work product claim fares no worse and no better. Tenute has not shown that either May 27, 2021 version was prepared by an attorney, at an attorney's direction, or that it would not exist but for counsel's initiative, decision, and effort. (Code Civ. Proc., § 2018.030; Coito v. Superior Court (2012) 54 Cal.4th 480, 494-495.)

Coito confirms that a writing independently prepared by a non-attorney does not become protected work product simply upon its transmission to an attorney. (Id. at p. 494.)

Having found no privilege established, the Court does not reach Plaintiffs' waiver argument or Tenute's response under Evidence Code section 912.

The motion is granted as to the May 27, 2021 original assessment and the May 27, 2021 revision. Tenute shall produce both versions in full.

The June 16, 2021 Version

The analysis differs as to the June 16, 2021 version, which Tenute's log identifies as having been sent by Mr. Culyba himself to Mr. Oliynik and as incorporating Mr. Culyba's input.

To the extent that version contains content authored or supplied by Mr. Culyba in his capacity as counsel and reflecting legal advice, that content is privileged, and the privilege is not defeated by his inability to recall specific edits nearly five years later. To the extent the version consists of the earlier assessment carried forward, Tenute cannot rely on later attorney input to render the earlier content privileged retroactively. Tenute's assertion that "[t]here is no earlier, unprivileged draft" for Plaintiffs' argument to reach depends on the premise that the May 27 versions were privileged from the outset, which the Court has rejected above.

The motion is granted in part as to the June 16, 2021 version. Tenute shall produce that version subject to narrowly tailored redactions limited to content that Mr. Culyba added, and that reflects his legal advice or his impressions, conclusions, opinions, or legal research or theories. Content carried forward from the May 27, 2021 versions shall not be redacted.

The motion is otherwise denied as to the June 16, 2021 version to the extent it seeks production of that version without redaction.

Monetary Sanctions

Tenute requests monetary sanctions of \$15,000 jointly and severally against Plaintiffs and their counsel under Code of Civil Procedure sections 2031.310(h), 2023.010(h), and 2023.030, on the ground that Plaintiffs' motion was not substantially justified.

Section 2031.310(h) authorizes sanctions against a party who "unsuccessfully makes or opposes" a motion to compel further response, absent substantial justification or other circumstances making the sanction unjust. Plaintiffs have not unsuccessfully made this motion.

The motion is granted in substantial part, and Plaintiffs' position was substantially justified in any event. The dispute presented a genuine question of dominant purpose on a contested record, and Tenute's own supplemental privilege log, which first identified the withheld versions, was not served until August 22, 2026, four days before Plaintiffs' moving papers were due.

The Court further notes that both sides participated meaningfully in the IDC process and narrowed the dispute to a single category of documents. Under these circumstances, the imposition of sanctions would be unjust.

Tenute's request for monetary sanctions is denied.

Conclusion

Plaintiffs' Motion to Compel Further Response to Request for Production No. 11 and Production of Responsive Documents is GRANTED in part and DENIED in part as described above.

Within 20 days of this order, Tenute shall (1) serve a further verified, code-compliant response to RFP No. 11; (2) produce the May 27, 2021 original assessment and the May 27, 2021 revision of "Provence - DD risks.docx" in full; (3) produce the June 16, 2021 version subject only to the narrowly tailored redactions permitted above; and (4) serve an amended privilege log consistent with this order.

Tenute's request for monetary sanctions is denied.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.